

"If someone starts making statements using 'intellectual property', that is a sign of confusion, because that term attempts to generalise several different laws (copyright is one of them), when all these laws have nothing in common. So, whatever that person says is pure confusion; it is nonsense. And this nonsense is being passed off as meaningful."



to avoid mentioning or alluding to our ideas of freedom. Because that term had never been used, they could choose whatever idea to associate with it and leave out other ideas they did not want to mention. That's what they did. Ever since then, free software and open source are two fundamentally different philosophies based on different ideas of what is important.

So, the difference between the two philosophies is not just the detail, but goes down to the root. We have some criterion for free software, which is actually the criterion for the licensing and distribution of the program. There is also a definition of open source that has a criterion of how a program is licensed and distributed. So, in practical terms, they come out fairly similar. As far as I know, all free software is open source and nearly all open source programs are free software. But there are some open source programs that are non-free, and the reason is that they interpret their criterion for licensing in a way that is little bit more lax. So, there are some licences that they have accepted, but we have not.

Q The ordinary public uses the word open source...

Well, that depends... Don't simply assume that, and don't declare the total defeat of the free software movement, because that is not true. You just made a statement that is not true, because the ordinary public is a lot of people. Some have heard of one and some have heard of the other. It's true that more people have heard of open source, but that doesn't mean that everybody has heard of only open source.

The reason is that the supporters of open source are more in number and thus the companies who are involved with software mostly say 'open source'. And the reason is that most of those companies also are involved with proprietary software. They don't want to educate the public to reject the proprietary software on moral grounds, thus avoiding mentioning the free software movement and never mention our ethical ideas. They can win certain amount of favourable public opinion by connecting themselves with open source, and yet avoid teaching users to reject proprietary software.

They find a way to use the term open source and

their company's name in the same sentence even if what they are saying has nothing to do with it. They don't generally do that with free software because the idea of free software says that if it doesn't respect freedom it is an injustice, and so you should reject it. A company that makes non-free software is not going to want to link its name with free software. And that's why, theoretically speaking, they could play these double-talk terms with any other terms, but they don't generally play these tricks with free software. They do a different thing, however—they misunderstand the term 'free' and interpret it as gratis copies of proprietary software telling that it is free.

The English language has a flaw that other languages don't have—that is, there is no word that means free as in freedom with only that meaning. Whereas in most other languages there is a clearer word which doesn't mean zero price. In France, I always say 'logiciel libre', because 'libre' means free as in freedom. So, most languages have a word which mean free as in freedom and it doesn't talk about price. English seems to be the only language that fails to have such a word.

Q Can you clarify a bit between copyright and patents?

First thing, copyright and patents have nothing to do with each other. So, you may as well ask me to clarify between copyright and trees... or side walks.

Q But at times, people do try to club them together...

The first thing to realise is that copyright and patents have nothing in common; they are totally unrelated laws. What one of them does, the other one doesn't. So, in particular, if someone starts making statements using 'intellectual property', that is a sign of confusion, because that term attempts to generalise several different laws (copyright is one of them), when all these laws have nothing in common.

So, whatever that person says is pure confusion; it is nonsense. And this nonsense is being passed off as meaningful. But, most people don't know it is nonsense, so they repeat the nonsense. There are also people who